

Explanation of the MfN register complaints

Why a complaints procedure?

MfN operates a complaints procedure that aims to resolve complaints about MfN-registered mediators in a manner that is easy to access and informal. This way, MfN promotes and guarantees the quality of mediation in general.

Mediators listed in the MfN register, committed to complying with the Code of Conduct for MfN-registered mediators upon registration. They conduct mediations in accordance with the MfN Mediation Regulations. Due care in the performance of their duties is paramount. As with any professional group, a participant in a mediation being dissatisfied with the performance of the mediator cannot be ruled out.

It is important for both the person complaining and the mediator involved that the complaint is handled independently. That is why MfN has a complaints procedure in place that can be used in such situations. The aim of complaint handling is to resolve the complaint.

Filing a complaint

Do you, as a participant in a mediation, have a complaint about the performance of an MfN-registered mediator, you can first discuss this with the mediator himself¹. Mutual consultation, further information or explanation about the how and why of certain actions can often clear the air.

If, for whatever reason, this is not possible, you can file a complaint with MfN. This is done by submitting a written complaint to MfN. The complainant must state his² details, the name of the mediator, the mediation agreement (if available), a brief description of the mediation, the end date of the mediation and a brief description of the complaint. If the required data is not complete, MfN may request this data. In principle, this information must be sent by the complainant to MfN within three weeks. If this does not happen, the complaint will not be considered. MfN will inform the complainant of this in writing.



¹ Whenever this document refers to 'himself', this is also taken to include 'herself', 'themselves', and 'those themselves'.

² Whenever this document refers to 'his' as a possessive pronoun, this is also taken to include 'her' and 'their'.

What happens with a complaint?

MfN registers the complaint. Objective criteria are used to determine whether the complaint should, in principle, be handled by MfN (is the mediator registered with MfN and does it concern mediation that is subject to the MfN regulations) and whether the required information is complete.

MfN aims to send the complainant an acknowledgement of receipt within one week and to simultaneously forward the complaint to the relevant mediator, stating the name of the intended complaints handler. MfN asks the complainant, mediator and complaints handler to indicate within a week whether there are any ties that could impede the impartial handling of the complaint (for example, do they know each other personally). If this is the case, MfN will engage another complaints handler. MfN will forward the complaint to the complaints handler within three weeks of receipt of the complaint.

Complaints are handled by a neutral, external complaints handler, appointed by MfN. Complaints handlers are experts with a broad orientation and experience in the world of mediation.

Treatment

The procedure is easily accessible and informal. The complaints handler usually reports to the complainant and the mediator within one week of receiving the complaint. He³ consults with the complainant whether the complaint can be handled within the scope of the complaints procedure. If this is not the case, the complaints handler will discuss the possibility of going to the disciplinary court of Stichting Tuchtrechtspraak Mediators (STM).

Within two weeks of receiving the complaint, the complaints handler will inform the complainant, the mediator and MfN whether he has accepted the complaint.

If it has been decided to have the complaint handled by the complaints handler, the complaints handler will hear both the complainant and the mediator. The complaint can be handled over the telephone, provided the complainant and the mediator agree to this. A physical appointment can also be scheduled by mutual agreement.

The complaints procedure is not a tool to decide whether someone is 'right or wrong'. Complaint handling aims to handle the complaint to the satisfaction of the complainant and the mediator. The handler neither makes a binding decision, nor does he impose sanctions.

The period for handling a complaint is a maximum of six weeks. The complaints handler can extend this period once by a maximum of four weeks. Once the handling of the complaint leads to a solution, the complaints handler closes the file. If no solution has been reached within the applicable resolution period, he will close the file at the end of the period.

There may be exceptional circumstances in which the resolution periods stated in the complaints procedure cannot be met (for example, in the case of illness or holiday). Some leniency is expected from the complainant and mediator if special circumstances arise that could affect said resolution periods.

The complaints handler will send written feedback to the mediator, the complainant and MfN when the complaint handling process has ended or when it has not been possible to start the complaint handling.

³ Whenever this document refers to 'he', this is also taken to include 'she', 'them' and 'those'.
January 2026 version

Internal information and filing

The complaints handler safeguards all documents whilst the complaint is being handled. After handling the complaint, MfN retains the original complaint and a copy of the written feedback message that the complaints handler sent to MfN. The complaints handler will destroy the remaining documents as soon as possible, but no later than within two years.

Stichting Tuchtrechtspraak Mediators

After the complaint handling process has ended, the complainant has the option to submit his complaint in writing to the STM Disciplinary Committee within eighteen months after the mediation ended. In that case, the STM Regulations apply.

Privacy and confidentiality

The complaints handler is obliged to maintain confidentiality with regard to all information that has come to his attention whilst handling the complaint. This duty of confidentiality also applies to persons employed by MfN or those otherwise involved in the handling of the complaint. In a procedure at STM, a complaints handler can neither be summoned nor make a statement.

In this procedure, the mediator and complainant are not bound by the duty of confidentiality applicable to them as referred to in Article 4 of the Complaints Procedure with regard to information necessary to handle the complaint.

The information exchanged during the handling of the complaint is confidential. However, any agreements with the complainant and/or mediator are not covered by confidentiality, in the sense that they can be included in any disciplinary proceedings at STM. If the complainant and mediator wish to keep the agreements secret, they can agree to this in writing.

The complaint will be handled in private. This means that, in principle, no other persons participate in the handling of the complaint, unless explicit permission is given by all parties involved. Both the complainant and the mediator can obtain assistance in the handling of a complaint. This person too must commit to confidentiality.

All actions assigned to MfN as such in the scheme are performed by an MfN employee. MfN employees are bound by a duty of confidentiality.

Costs

The complaints procedure is aimed at handling complaints in a manner that is informal, easily accessible and responsible. That is why MfN will cover the costs of the complaints handler. Costs incurred by the complainant and the mediator will be payable by them.

(The above text is for explanation and information purposes only. The text of the MfN Complaints Procedure is decisive.)